

UTAH UNCONDITIONAL WAIVER AND RELEASE ON PAYMENT

FINAL PAYMENT (PAID IN FULL)

Property Name: Hunters Landing Apartments
Property Location: 407 W 12th Street Ogden, UT 84404
Undersigned's Customer: 12SB LLC
Invoice/Payment Application Number: Final
Payment Amount: \$51,468.76

The undersigned hereby releases and waives any notice of lien or right under Utah Code Ann., Title 38, Chapter 1a, Preconstruction and Construction Liens, or any bond right under Utah Code Ann., Title 14, Contractors' Bonds, or Section 63G-6a-1103 related to payment rights the undersigned has on the above described Property.

This waiver and release applies as a **Final** payment for the work, materials, equipment, or combination of work, materials, and equipment furnished by the undersigned to the Property or to the undersigned's customer.

The undersigned warrants that the undersigned has been paid in full, and that the undersigned either has already paid or will use the money the undersigned received from the final payment promptly to pay in full all the undersigned's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or combination of work, materials, and equipment that are the subject of this waiver and release.

DATED _____

Subcontractor: Keith Kap & Sons Excavating

By: _____
(Signature)

Name: _____

Title: _____